

3.11 Content, accuracy and completeness of the ENS filing

Officers must be able to identify the person (or persons) responsible for compliance with this requirement. All the data elements prescribed in Annex B of the UCC DA/IA for the particular mode of transport or for express consignments must be contained in the ENS filing. The filing must be completed in accordance with the Explanatory Notes in Annex 9 of Appendix A of the TDA. In general ICS will only accept completed ENS declarations.

If the declarant learns later that one or more particulars contained in the ENS filing have been incorrectly declared, the provisions on amendments apply.

The lodging of a declaration signed by the declarant or their representative renders them responsible under the provisions in force for the:

- Accuracy of the information given in the declaration.
- Authenticity of the declaration and
- Compliance obligations relating to the entry of the goods in question.

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[...]

3.12.5 Administrative penalties

Administrative penalties may be enforced for failure to comply with the standards regarding the quality and content of the documentation submitted., It is essential for officers to recognize this option in order to facilitate the promotion of compliance.

The [Tax and Duty Manual on Customs Administrative Penalties](#) outlines the procedures which should be followed.

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